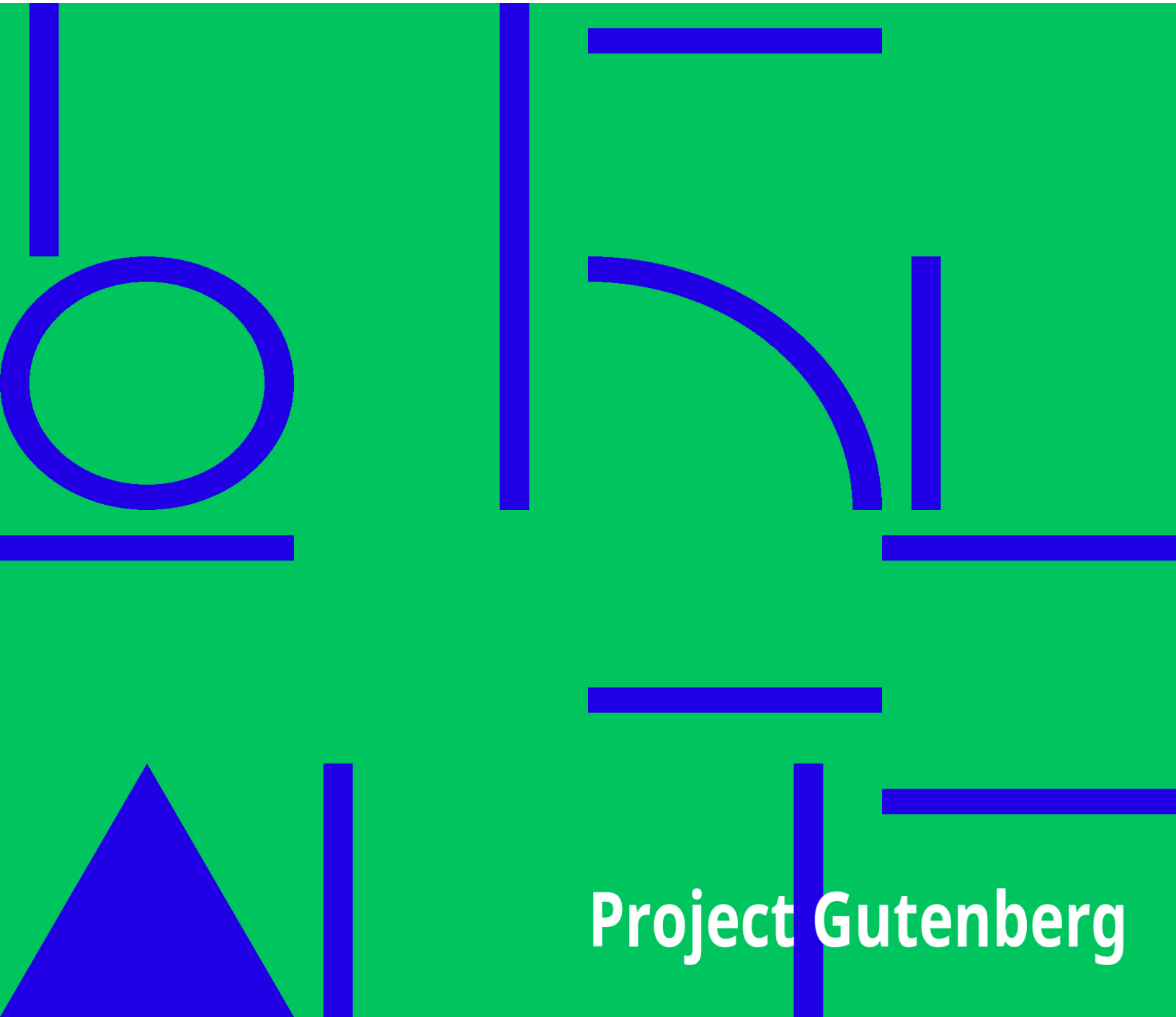


The White Feather Hex

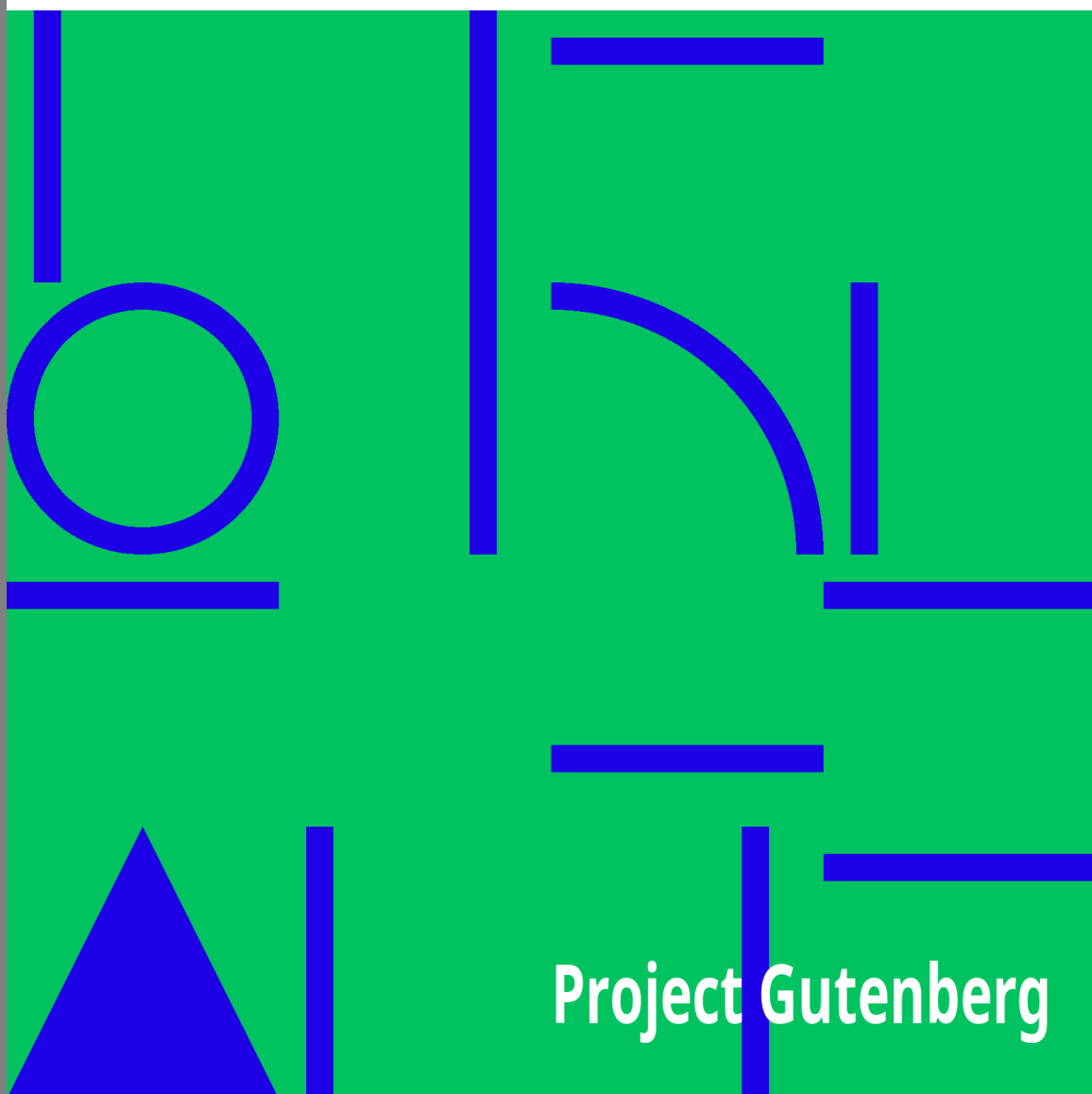
Don Peterson



Project Gutenberg

The White Feather Hex

Don Peterson



Project Gutenberg

The Project Gutenberg eBook of The White Feather Hex

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The White Feather Hex

Author: Don Peterson

Release date: November 3, 2007 [eBook #23308]

Language: English

Other information and formats: www.gutenberg.org/ebooks/23308

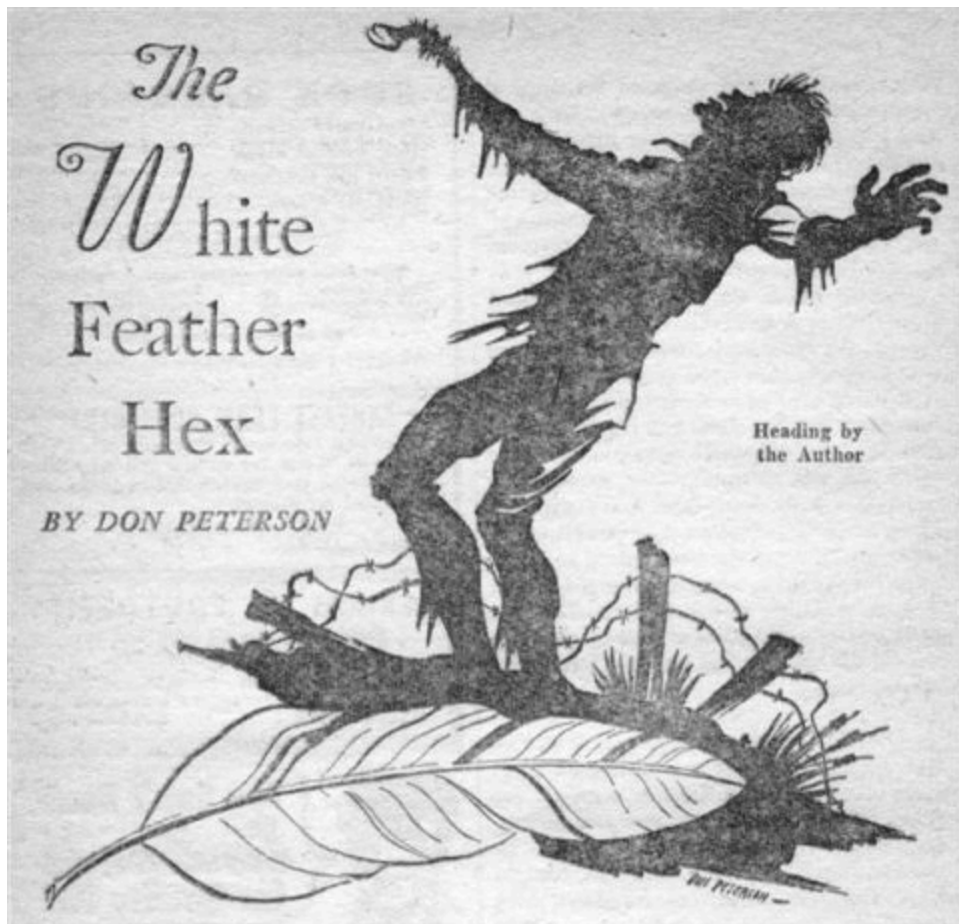
Credits: Produced by Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE WHITE
FEATHER HEX ***

The White Feather Hex

BY DON PETERSON

[Transcriber Note: This etext was produced from Weird Tales March 1951. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.]



You waited till the feather turned red.

It all started with a Dutchman, a Pennsylvania Dutchman named Peter Scheinberger, who tilled a weather beaten farm back in the hills.

A strong, wiry man he was—his arms were knotted sections of solid hickory forming themselves into gnarled hands and twisted stubs of fingers. His furrowed brow, dried by the sun and cracked in a million places by the wind was well irrigated by long rivulets of sweat. When he went forth in the fields behind his horse and plow, it wasn't long before his hair was plastered down firmly to his scalp. The salty water poured out of the deep rings in his ruddy neck and ran down his dark brown back. As he grew older the skin peeled and grew loose. It hung on him in folds like the brittle hide of a rhino.

It seemed that the more years he spent in his fields behind the plow horse, the more he slipped back into the timeless tradition of his forefathers. He was a proud descendant of a long line of staunch German settlers commonly known as the Pennsylvania Dutch. He grew up in his fundamental, religious sect having never known any other environment. He was exposed to the sun, soil, and wind from the early days of his childhood, and along with the elements he also was exposed to the evils of the *hexerei*. The *hexerei*, or witchcraft, was something that was never doubted or scoffed at by his people. Then why should he, a good Pennsylvania Dutchman, doubt or scoff at such tradition?

Perhaps, had he moved away from his ancestral lands and had been cultured in modern communities, been educated and raised in other schools, he might have matured. But having no time for any other diversions than might be found on his rustic homestead, he grew up behind the plow horse, tramping in the dark, stony pasture land, eking out his meager existence from the black fields of Pennsylvania.

Now, Peter's life could have gone on unnoticed among these forgotten hills, except for the strange visit of Martin G. Mirestone, student of German history.

It was a cold night when Peter met Mirestone. Peter had been sitting up rather late pondering over an old, yellowed book by the light of a kerosene lamp. The pale flame flickered about the walls sending shadows scurrying back and forth creating all types of weird shapes and designs. Peter huddled

over the withered pages, every now and then glancing up at the walls to watch the fantastic games that light and dark were playing. Then putting his book aside for the night he prepared to go to bed.

He went over to the window to draw the shutters, stopping for an instant to peer out into the gloom along the stony path that ran from his house to an old foot-bridge about fifty feet away. Curling up from the gorge, mist seemed to play among the rotted planks; it rose and fell in great billowing blankets, sometimes concealing the structure from view.

Peter was about to latch the shutter and leave when his attention was focused upon a figure that seemed to emerge from the fog—sort of fading in from nowhere. It made its way across the narrow span like some ghostly apparition. The mist enveloped his legs and clouded his features. Peter drew back in terror, for the mere appearance of the man coming out of the darkness was enough to fill his infant brain with visions of death and *hexerei*.

As the figure drew closer Peter saw that it was wearing a cloak. All the more ghostly it appeared with the cloak sailing behind him in the wind like some devil's banner. Peter just stood transfixed as he watched the stranger come up the winding road to his house.

Slamming the shutter he hurriedly fastened it and then turned to the door to bolt that also. Too late. The door was thrown open revealing a tall man clothed in black. His face was wreathed in a wide grin—a grin that seemed to make fun of the grayish pallor of his face and the ominous appearance of his wild garb. Before the man stepped inside, Peter made a mental image of the scene, for it was to be firmly imbedded in his mind so that he would never forget the slightest detail for the rest of his life—the wind blowing about the fierce visage, tossing up the long strands of hair; the massive, veined hand that clutched the wrought iron thumb-latch, and the way that the lamp struck his face, highlighting the thin, ridged nose and high cheekbones.

"Peter Scheinberger, heh?" the man spoke in perfect German. "Peter Scheinberger, the last of your clan here in America."

It was several seconds before Peter could muster up enough courage to answer him. Drawing back slowly he braced himself against the table, and in a thick, guttural German asked, "Who are you?"

The stranger shut the door and drew the bolt. He crossed the room and, with an air of one who was accustomed to having his own way wherever he went, scanned the shelves of Peter's larder with a practiced eye.

Peter watched him closely as he drew down a bottle of wine, broke the neck against a beam above him, and settled down in Peter's easy chair. He poured a glass full and shoved it across the table towards the anxious Peter, and then poured another glass for himself.

"Mirestone," the stranger finally answered, "Martin G. Mirestone." Then, draining his glass, he added, "Student of German history."

All this was beyond Peter's comprehension. No one ever had the audacity to walk into his house and help himself to whatever he wanted—he was indeed unheard of in his tiny social world.

"Well, what are you staring at?" Mirestone boomed out. "Take my cloak, please, then be seated. We'll talk."

Taking the cloak and draping it over a wooden peg in the wall, Peter moved cautiously around the foreboding character that monopolized his small house. Carefully seating himself opposite the man, he moved the table so that it set between them as a protective barrier.

"I'll make myself clear to you," Mirestone explained, "For I want my stay to be as brief as possible."

He poured himself another glass of wine, then settled back in the chair, half closing his eyes. "You see, I am a student, you might say, of German history or folklore. I am in the process of writing a collective history of the Pennsylvania Dutch folk, their habits, beliefs, and—" he broke off for an instant as he leaned forward across the table, staring into the frightened eyes of Peter—"and their superstitions."

Shifting his chair around in order to get benefit from the heat of the fireplace, Mirestone went on. "Now I want facts, Scheinberger, authentic facts. I am prepared to pay you well for your trouble, but I insist on information that is backed up with sound, accurate truth."

Peter became more relaxed but still slightly uneasy. He didn't like the attitude of this man, Mirestone. He was too sure of himself—altogether too cocky. But then on the other hand he had said there would be a financial gain from any business that he could transact with him. Money was something that Peter knew he needed in order to keep his farm going, and any income, however small it may be, would be welcomed gratefully. Yes, he decided that he had better endure the rudeness of this man.

For a few seconds, however, the tall stranger seemed to lose all of his cockiness, and a somber look crept over his jovial features. "Have you ever heard of the hex of the white feather?"

Peter thought a moment before he replied. "Yes. I have heard of it." Then nervously he fingered his glass of wine that he had not as yet touched. Raising it up to his lips he sipped it slowly as he stared at Mirestone over the rim of the glass. "Yes. I have heard of it," he repeated.

"Good, good. You have heard of it. Now, you will tell me about it, of course. I want to know all about it—how it is practiced, the results, and so forth."

"Is that why you came here? Only to learn of the white feather hex?"

Mirestone climbed to his feet and paced the room. "Yes," he said. Peter noted a sad tone in his voice, and he waited for him to say more.

"Yes," Mirestone continued. "I have, like you, heard of the hex of the white feather. I have traced it down to several families, but none could tell me anything about it that was factual. Half of the stupid fools made up stories as they went along—some concocting the biggest bunch of asinine tales that I've ever heard. But you, Peter, are a descendant of the Scheinbergers. I know for a fact that Otto Scheinberger practiced the white feather hex and

passed the power on down to your father. From there it stopped. However, there must be some record of it in your family. You are in possession of the books of your grandfather, aren't you?"

"I have several of his books. Some of them I have read."

"Well," Mirestone waited. "Did you come across anything about the hex?"

"Yes," answered Peter. "I read about that which you mention."

"Splendid, now we are getting somewhere. Can you find me the book that tells of it?"

Peter finished drinking his wine and setting the glass upon the table, he slowly rose and faced Mirestone with a look of superiority playing about his rustic features. "No, I am afraid not. You see, I have burned the book."

Mirestone's face went white. "You burned it?"

"Yes," said Peter. "I don't wish to have anything to do with such black magic. It is better burned."

"But you must remember the hex. Although the book is destroyed you still have the information in your head, *nein*?"

"I could never forget it if I wanted to," replied Peter reluctantly. "If I could burn my memory also it would be better."

Mirestone went back to the fireplace and placed several chunks of wood on the blaze. A bright orange glow leaped out from the hearth and danced mockingly over his pallid brow, hiding his lank jowls in the shadows cast by the cheekbones. Like some grim spectre he rose up, towering above the little Dutchman. Peter had only to look into his eyes to see the imperative request that lingered behind the hollowed sockets.

Throughout the remainder of the night Peter, almost in spite of himself, wracked his brain to bring back to mind everything that was mentioned in the book about the hex of the white feather. The idea was clear enough, but

the minute details, the infinite possibilities for mistake, and the exacting specifications concerning the experiment were blurred in his memory. He knew that with time he could bring back everything that he had read, but it would take deep concentration and, perhaps, many days of trial and error to determine the right path that they must follow in order to have success.

Mirestone, realizing that any distraction would break Peter's train of thought, sat quietly in the corner finishing off the Dutchman's supply of wine. He watched Peter closely through his slitted eyes, and it seemed that his compelling stare was the only force that could drive the frightened Peter on. Every so often Peter would glance up and see Mirestone leaning back in the corner half concealed by the deep shadows—only his partially opened eyes could be seen flickering in the fiery glow of the hearth. Then he would cover his face with his large, knotted hands, work the twisted fingers through his hair, and try to bring back to mind the evil recipe.

The glow from the fireplace gradually died down to make room for the streams of morning dawn. Peter blinked sleepily and got up to stretch a bit. Outside the dull morning light worked its way over Peter's farm—clouds of mist still poured up from the gorge, circling the bridge and creeping up the bank across the fields. Peter unlatched the heavy oaken door and went outside to the outbuildings.

Meanwhile, Mirestone had started a fire in the stove and was placing slabs of bacon in the pan. "Nothing like a good old-fashioned peasant's breakfast," he laughed as Peter came in the door several minutes later. "So, you brought a goat, heh?" he noticed. "Are you figuring on starting in soon?"

Peter set a small kid on the floor and watched it scamper about the room, looking for an exit. "Yes, we might as well. I don't like this business at all. I wish to get it over with as soon as possible, and——" Peter eyed Mirestone squarely. "I expect to be paid well for my trouble." He was trying to make himself believe that that was his only reason for complying with Mirestone's demands. Actually he was not so sure....

As the heat of the noon day sun blasted down on their backs, Mirestone watched Peter pass a feather, freshly plucked from a white Leghorn, under the nose of the bleating kid. Mirestone listened carefully to what Peter was telling him. The breath of the victim had to be spread over the feather before anything further could be done.

"Tie him," commanded Peter. Mirestone held the goat by the scruff of his neck and fastened a halter about him. The other end was secured to a stake allowing the kid to run about in a circle of ten feet or so in diameter.

"We will leave him for awhile," said Peter as he walked back to the kitchen.

Mirestone followed in the Dutchman's footsteps, and when they were inside, he listened intently as Peter recited a monosyllabic chant over the feather. "The chant is easy enough to learn," Peter assured him. "You will master it quickly."

"I understand so far," Mirestone said.

"Then that is all," Peter finished, "except that you can hang the feather up and watch it grow red."

"Red?"

"Yes," Peter explained, "That is the only way you can tell if the hex has worked."

Peter went to a chest at the foot of his bed and drew out a small box of sewing utensils. He broke off a piece of black thread and replaced the box in the chest. "Now I'll show you what I mean," Peter spoke wearily as he tied the feather with the thread and suspended it from one of the rafters in the room. "Just sit and watch."

It was not many minutes before a light red tint crept up the feather's quill, spreading slowly outwards towards the fringed edges. Deeper and deeper grew the intensity of the color until it reached a pure blood red.

"Hurry outside," cried Peter. "You can see the goat in its last seconds of life."

Mirestone hurried after the Dutchman. Jerking at the halter the goat bleated in agony, prancing up and down frantically. Its eyes grew horribly bloodshot and finally closed. With a feeble, choking sigh, the animal dropped over on its side, its legs still twitching spasmodically. Mirestone bent over the hairy form and examined the head, now wet with perspiration.

"Nothing can be done for the beast?"

"No." Peter looked on with a touch of pity in his eyes, "Nothing can be done once the feather has turned red."

As if the death of the kid was their cue, masses of thick thunderheads turned over with a deep rumbling thunder. The sky became crystal clear, and a greenish glow could be seen working its way across the horizon. The sky darkened as the glistening thunderheads now taking on an ominous coloring warned the farmers of the impending storm.

It was later that evening. Rain drummed against the slate roof of Peter's house and reverberated through the rooms to where Mirestone and the Dutchman sat by the fire in silence. Mirestone broke the still atmosphere by putting forth a question that Peter somehow knew would be coming sooner or later.

"I wonder how the hex would react on a human being?"

Peter hoped to end the topic by answering him quickly and not beating around the bush trying to evade the question. "It would kill him eventually. Maybe not so quick as the goat, but it would kill him."

"What do you mean not as quickly as the goat—do you think it would take more time on a human?"

"Perhaps. I have heard of cases in which the hex, once it was started, dragged on for many days."

"I see." Mirestone sat back again thinking to himself.

Peter didn't like this. He wanted to get rid of Mirestone. "Well, you have your information. I showed you how the hex works. So, why not pay me and leave?"

Mirestone got up and laughed in the Dutchman's face. Crossing to the larder, he brought down a bottle, cracking the neck on the beam above, just as he had done the night before. A wave of apprehension overcame Peter as he realized the old flip attitude of Mirestone's was coming back. That meant definite trouble, and Peter began to fear the consequences.

"So, why not pay me and leave?" he again ventured. "Or do you want something else?" Peter knew that he didn't need to ask that last question, for already he realized the grim experiment that was playing about in Mirestone's head.

"Yes. I just told you what I wanted. I want to see the hex on a human before I go."

"Why? You have your information. Why do you want to see it work on a man?"

"My stupid, little peasant friend, do I look like a student of history?"

For the first time Peter actually looked at Mirestone and saw him for what he was. Of course, he couldn't be a student. No student would act as he did, or even look as he did. The words jammed in his throat as he was about to voice a reply.

"Ha—Martin G. Mirestone, student of history, student of German history. No my little oxen friend. I am no more a student of history than you are, but I need the hex for other reasons which do not concern you." Then as if he were contemplating a great new joke he continued. "But on the other hand, maybe the future of the white feather hex does concern you."

Mirestone's voice was drowned out by a heavy rumbling of thunder and the increased splashing of rain on the windows. But somehow Peter seemed not to notice.

Somewhat later Mirestone stepped quietly over to the sleeping form of his host. Peter had been over twenty-four hours now without sleep, and although the old Dutchman had tried desperately to fight off the drowsiness

that overcame him, the recent excitement of the day had finally taken its toll. Lightning struck near by followed with an ear splitting blast that shook the house to its rocky foundations. Pieces of slate flew off the roof and were carried away into the night. The rain poured down in a great deluge, blurring the window, making it impossible to see in or out.

Mirestone held out a glistening white feather in his long spidery fingers. He placed it within a few inches of Peter's nose and watched the delicate edges ruffle in the Dutchman's breath. Crossing to the table, he leaned over the white fluff and breathed the short German incantation over it. How it glistened in the firelight! He bent closer and closer as he whispered the magic words that Peter had taught him, his breath ruffling the feather, playing about in the fringed softness. He hung up the feather by a thread and watched it hop back and forth in the center of the room.

Peter awakened and saw Mirestone sitting by the fire noting every movement of the feather. "What are you doing, heh?"

Mirestone swung around and glared at the bleary eyed Dutchman. "Sit down," he commanded. "Sit down and watch the feather turn red."

Peter didn't need to be told that it was his feather. He knew by the merciless eyes of Mirestone that everything was over. "So, you were determined to find out what would happen if the hex were tried on a man?"

Peter was surprised at how easily he took his fate. There was no need of excitement—this was his end and there was no changing it.

"Yes, I had to know, for I can't leave until I have a complete record of all the results." Mirestone certainly was not cocky now. He looked almost ashamed of himself as he sat there nervously watching a man's fate swing by a silken thread. "I'm sorry, Peter, my friend, but that is how it must be. You are a stepping stone to a glorious reckoning that will soon take place. The hex of the white feather—I can hardly believe that I have at last tracked it down. And you, Peter, are the last witness, the last link in the chain of

those who know the secret, and how can it better end than by your becoming a part of the secret?"

Peter realized that he had not much longer to live and nothing he could do to Mirestone would change his fate. Perhaps he could save others, though.

"What is this glorious reckoning you were speaking about?"

"As soon as I see how your case ends, I'll be able to go ahead and release my vengeance on those stupid, bungling fools who have thwarted my progress in the black arts. They claim to speak in the name of humanity, no less!"

"In that case," exclaimed Peter, "I won't let myself be a foothold for your damned work—it is of the devil and I'll have no part of it."

"Shut up, fool. You are a part of it already."

"Not if my body is destroyed before you can get hold of it."

Peter played his trump card. He quickly sprang back and slipped out the door into the storm. Mirestone jumped up after him, but it was too late. He peered out into the raging tempest making out the figure of Peter struggling with the hatch on the horse barn. He pulled his cloak about him and started towards Peter to stop him. The rain beat his face, blinding him momentarily, and before he could see clearly a dark mass pounded by, swift hoofs spattering mud all over him.

Down the road sped Peter on the horse—down the road and towards the foot-bridge. Mirestone ran a few steps and halted. He heard the hollow staccato of horse's hoofs on the planks for an instant, followed by a splintering crash that rumbled up from the gorge. A long, guttural cry pierced the black gloom as man and horse plunged down to the seething death awaiting them.

Cursing savagely, Milestone trudged back through the rain to the house. He slammed the door shut and threw his cloak on Peter's bed. There was one more bottle on the shelf; he smashed the neck and poured a glass. If one could see him bent over the table sending silent curses into his wine, he could readily imagine the feeling of defeat that had spread over Mirestone's

countenance. The idiot of a Dutchman who had to play the hero's part and save other lives by ending his own made Mirestone fairly sick. However, all was not over. So the Dutchman had died; the hex had worked—a lot sooner than he had expected though. Now he certainly would be delayed in his progress, for he had counted on examining the body for any traces left that would suggest something out of the ordinary. One thing, however, he had learned was that the hex at least worked on humans. The mangled body that was being washed over the rocks would be enough proof on that score.

Mirestone poured another drink. He leaned back in the chair and placed the glass to his lips. He was tilted so far back that as he raised the wine to a drinking position, it blocked his view of the room. As he slowly sipped it, however, the room began to come into view—the ceiling first and slowly the wall. His eyes focused on a piece of thread hanging from the ceiling, and as the wine sank lower and lower in the glass, the thread grew longer and longer until in one last swallow he was able to see the end of the line.

Mirestone's hand went stiff as he looked at the thread, for on the end of it was a pure white feather.

In an instant Mirestone realized that the hex had not worked. Peter's death at the bridge had been a grotesque coincidence. Had the untimely plunge in the rapids been the result of the hex the feather would have long since been red, therefore, the tragedy was no more than an accident and Mirestone's hands were innocent of the Dutchman's blood. That realization, of course, didn't bother him, for he was not concerned whether or not he was responsible for Peter's death, but he was genuinely worried in the failure of the hex. He wondered if he had done something wrong. If he had, the last link, that could have corrected him was broken. From here on in he was on his own.

He calmed himself and began to think. He retraced everything that he had done to see if he couldn't have found some margin in which error could have crept in. He remembered how carefully he had bent over the feather reciting the exact words taught him by Peter. He especially remembered

that part of the hex, for hadn't the feather been ruffled by his breath when he spoke....

Gradually the truth began to dawn on Mirestone. His own breath must have released Peter from the hex. The last person's breath that touched the feather would feel the sting of the power. Mirestone sat back dumbfounded. He was to be his own guinea pig. What ghastly horror was he in for? Would he die quickly like the goat or would his death be prolonged over a period of days like Peter had suggested. He gripped himself. It wouldn't do to lose control of his senses. There must be a way out of the predicament. But Peter said that as soon as the feather turned red there was no turning back. Ah—there's the answer. The feather is still white ... there's still a chance.

Mirestone grabbed his cloak and raced for the door. He must get an animal—another goat, perhaps, and expose the feather to its breath. He must hurry lest the spell will start working.

The slippery mud dragged him back and impeded his progress, but he struggled on through the blinding storm towards the barn. It was so black outside that he could hardly make out the buildings. All at once he saw the barn looming ahead of him. Which door? Every second counted; he would try the first one he came to. Wait—what's this holding his cloak? Mirestone turned and fumbled with some barbed wire fencing. It had snagged him in the dark, and he soon became hopelessly entangled in it. Crying and shrieking, he tore the cloak from his shoulders and ran on in his shirt sleeves. He wrenched open a door and sprawled in the barn head first. On his hands and knees he scurried across the mealy floor to the goat stall. The kids sprang in terror as he lurched in drunkenly, grabbing about in the dark for one of them. Catching one by the hind leg, he groped his way out again.

Thrusting his shoulders forward he slid through the gripping mud, tearing his way through the engulfing rain with his free hand. His leg left numb from the wound inflicted by the barbed wire, and a trickle of blood was running down his shins. Without thinking he reached down to rub the wound, but quickly yanked his hand up again. What was that horrible sensation he felt as he passed his hand over the fleshy sore? He couldn't see in the rain, but his leg told him that it was something hairy, almost bristly.

He ran on towards the house, stumbling in the treacherous mud. Once he fell completely down in the slime. Wiping the dripping earth from his face, he was told again that something was wrong. His cheeks verified his shin's story of a rough, jagged caress.

Holding his hand in front of his face he saw, amidst a flash of lightning, a curling, black claw, bristling with long, ragged hairs. Screaming hysterically he dropped the kid and fell forward into the door of the house. The latch gave way with his weight and he tumbled into the cottage.

Dancing madly on the end of a thread was a blood red feather.

*** END OF THE PROJECT GUTENBERG EBOOK THE WHITE
FEATHER HEX ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

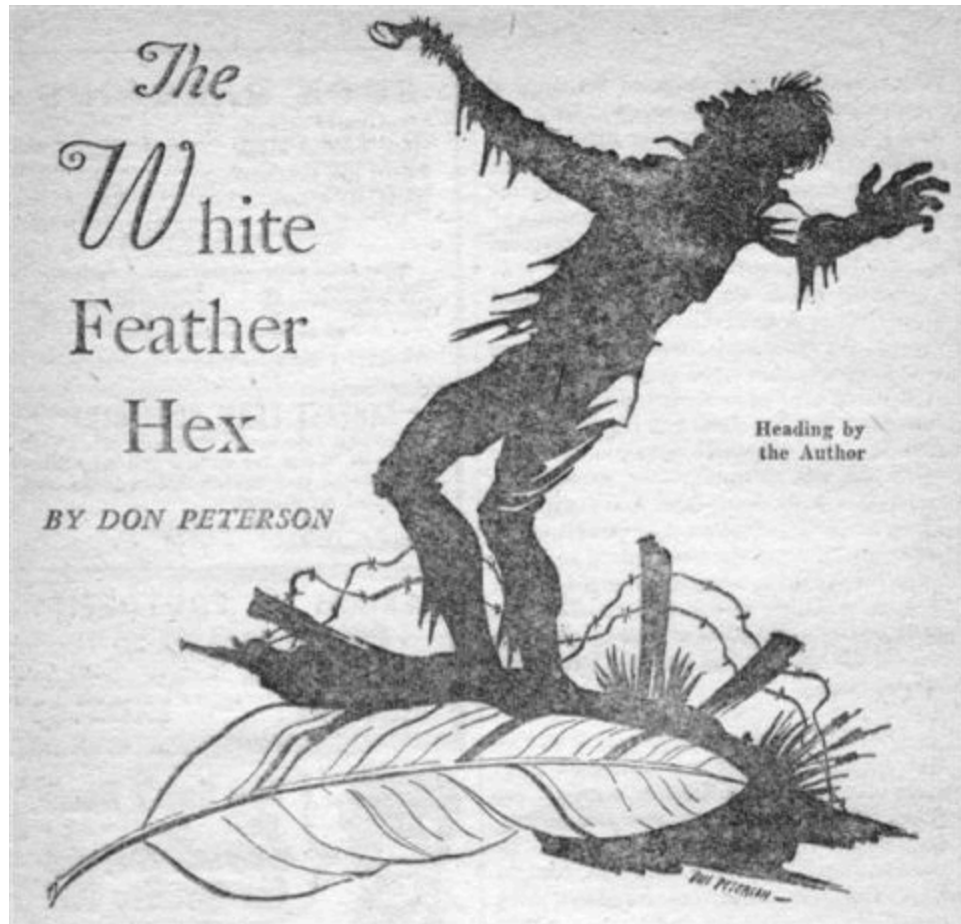
Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)